

25NWCV01509 25NWCV01509

County: los-angeles

Division: Civil Law and Motion

Department: P

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Case Number: 25NWCV01509 Hearing Date: September 24, 2026 Dept: P

TORRES v. GENERAL

MOTORS, LLC

CASE NO.: 25NWCV01509

HEARING: 09/24/2026 @ 9:30 AM

#6

TENTATIVE ORDER

Plaintiff Hugo Torres's motion for a stay is DENIED.

Moving party to give notice.

Plaintiff Hugo Torres (Plaintiff) moves to stay this action pending the Court of Appeal's decision in Price v. General Motors [Price] (B353231).

Background

On April 25, 2025, Plaintiff filed this lemon law action against Defendant General Motors, LLC (Defendant) and Does 1 through 10. On July 2, 2026, the Court sustained Defendant's motion for judgment on the pleadings in part and sustained it without leave to amend in part. On August 3, 2026, Plaintiff filed the operative first amended complaint (FAC).

This action arises out of alleged defects and

nonconformities to warranty Plaintiff experienced with his 2018 Chevrolet Malibu (Subject Vehicle). (FAC, ¶¶ 6-14.) The FAC asserts one cause of action: fraudulent inducement-concealment.

Legal Standard

“ [A] court ordinarily has inherent power, in its discretion, to stay proceedings when such a stay will accommodate the ends of justice.” (OTO, L.L.C. v. Kho (2019) 8 Cal.5th 111, 141, citation omitted.) “ [T]he power to stay proceedings is incidental to the power inherent in every court to control the disposition of the causes on its docket with economy of time and effort for itself, for counsel, and for litigants.” (Ibid., citing Landis v. North American Co. (1936) 299 U.S. 248, 254–55.)

Discussion

Plaintiff moves to stay this action pending a ruling in Price.

Plaintiff argues that “Price will decide a novel legal issue that is implicated in this case: whether a manufacturer’s post-filing election into the Song-Beverly Act’s new procedural regime can retroactively time-bar a complaint that was already on file when the new statutes of repose and limitations took effect.” (Mot., 3:8-11.) Plaintiff contends that any ruling in this Court may be subject to revision or reversal once Price is decided.

In opposition, Defendant argues that Plaintiff fails to show circumstances warranting a stay and that this requested is a delay tactic solely to benefit Plaintiff’s counsel. Defendant notes that thus far only a Notice of Appeal has been filed in Price and Plaintiff makes no showing of a potential timeline for this stay. (Perez Decl., ¶ 10.) Defendant further argues that Plaintiff does not show any hardship whereas Defendant would lose the ability to obtain timely deposition testimony from Plaintiff and discovery may get lost during an open-ended period. (Hightower Decl., ¶¶ 9-10; Perez Decl., ¶ 9.) Defendant also argues that a stay would be prejudicial because once the stay is lifted, the parties would be required to resume discovery in a backlog of cases on an accelerated schedule. (Perez Decl., ¶ 11.)

Here, the Court does not find that the balance of equities favor a stay based on Price. As of this time, there is no timeline on a

potential ruling and Defendant establishes that a stay of an unknown duration would be prejudicial. This Court has also already ruled on Defendant's motion for judgment on the pleadings in which these issues were raised. Further, in the event of a potential ruling in Price that may affect Plaintiff's rights here, Plaintiff may seek recourse by filing motions for reconsideration or the like.

Accordingly, Plaintiff's motion for a stay is DENIED.